

New Entrant Safety Audit · prep guide

For Acme Trucking LLC · USDOT 1234567

Within 12 months of getting a USDOT number, every new motor carrier gets a safety audit. Fail it and you're shut down. The audit is a checklist, not a mystery · this guide is exactly what FMCSA looks at.

I · THE 16 AUTOMATIC-FAILURE FINDINGS · §385 APPENDIX A

- **Using a driver** not holding a valid CDL when required · §383.23
- **Using a driver** with a suspended / revoked / cancelled CDL · §383.51
- **Using a driver disqualified** under §391.15
- **Operating a CMV** without proper liability insurance · §387
- **Operating a CMV** without periodic inspection · §396.17
- **Operating a CMV** placed out of service before correction · §396.9
- **Using a driver** without a current medical card · §391.45
- **Failure to require** a pre-employment drug test · §382.301
- **Failure to implement** a random drug + alcohol testing program · §382.305
- **Failure to test** after an accident meeting §382.303 criteria
- **Using a driver** the carrier knows has tested positive or refused · §382.501
- **Failure to maintain** driver qualification files · §391.51
- **Failure to maintain** accident register · §390.15
- **Knowingly using a driver** over hours · §395.3
- **Knowingly false statements** on RODS · §395.8
- **Operating** in violation of an OOS order · §396.9

II · WHAT THE AUDITOR WILL ASK YOU TO PRODUCE

DOCUMENT	WHO HAS IT	CFR
Operating authority + USDOT number	FMCSA portal	§387

DOCUMENT	WHO HAS IT	CFR
Insurance filings (BMC-91 / 34 / etc.)	Insurance broker	§387.7
DQ file for every driver	You · 12 documents each	§391.51
D&A testing program records (random pool, results, training)	You + C-TPA	§382.401
Clearinghouse pre-employment + annual queries	You · printed query confirmations	§382.701
Accident Register (3 years)	You	§390.15
HOS records (RODS / ELD output 6 months back)	You · ELD vendor + paper	§395.8
Vehicle list + maintenance + §396.17 annual inspections	You	§396.3, §396.17
DVIRs (3 months)	You · paper or electronic	§396.11
Hazmat training + security plan if applicable	You	§172.704, §172.800
Written safety + D&A policies	You · driver receipts on file	§382.601

III · THE AUDIT TIMELINE

1. **FMCSA notifies you** 30+ days out · in-person or virtual, your choice
2. **You confirm** the date and provide initial documents (insurance, vehicle list, driver list) within their requested window
3. **The audit happens** · 1-2 days · auditor pulls documents, interviews you, may interview drivers
4. **You get a result letter** within 90 days · Pass · Pass with corrective action · or Fail
5. **If failed** · 60 days to correct · re-audit · second fail = revoked operating authority

IV · THE 5 HIGHEST-LEVERAGE PREP MOVES

1. **Generate an audit-export bundle** the week before · X3 Compass packages every DQ file, every Accident Register entry, 6 months of HOS, every DVIR into one organized PDF set

2. **Pre-audit your own random testing pool** · confirm the 50% / 10% rates have been met for the past 12 months · if not, ramp now and document the catch-up plan
3. **Verify every driver's NRCME entry** · most-cited finding · the examiner registry check date is the thing carriers forget
4. **Re-run pre-employment Clearinghouse queries** · confirm you have a printed result for every driver · not just an "I think we did it"
5. **Stage a mock interview** · sit a driver down and ask them the 5 questions the auditor will ask · gaps in their understanding are gaps in your policy

You don't need to be perfect to pass. You need to demonstrate a functioning safety program with documented evidence. The 16 acute-violation findings above are the ones that auto-fail. Everything else is correctable.